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Discussion on Indian Heritage, Exports, and Traditional Knowledge

The professor begins with a reflection on how **Indian traditions and products were systematically neglected** after independence. He argues that if **sarees had been exported** to the world, India could have become economically strong much earlier. He notes that **Aishwarya Rai once draped a saree for a European actress**, demonstrating the global appeal of Indian attire. The professor humorously suggests that girls who do not feel like studying could go to Europe and **open a business draping sarees** at weddings and functions. However, due to what he describes as **Jawaharlal Nehru's love for the West and disregard for Indian traditions**, such opportunities were lost.

A student points out that **Nehru himself wore kurta-pyjama and Khadi**, to which the professor responds that he is not asking Nehru to wear a saree. His larger point is that **Nehru focused heavily on imports and neglected exports**. He believed there was **nothing in India worth exporting**, which was a fundamental flaw. The professor gives the example of **Sanskrit**, which he calls the **most scientific language in the world**. He points out that **research on Sanskrit is happening at NASA**, yet **Nehru stopped the teaching of Sanskrit in India**, insisting that English was essential for progress.

The discussion extends to the neglect of **religious and cultural heritage**. The professor gives the example of **Ayodhya**, a place of immense faith for crores of Indians, which had **no railway station**, while **Faizabad, just 15 kilometers away, was developed** and all trains stopped there.
Similarly, **Chitrakoot**, a major pilgrimage and tourist site, was ignored in favor of **Karwi**. He argues that **tourism in ancient India was connected with religion**, and if pilgrimage sites had been developed, local economies would have benefited through rickshaw fares, hotels, and spending. When students suggest that such decisions were made to avoid Hindu-Muslim conflict, the professor counters that **no Muslim ever said a railway station should not be built at a Hindu place**. He asserts that those who objected should have been sent to Pakistan, as **India was divided on the basis of religion**, and Hindus in Hindustan must have the right to live as Hindus.

He contrasts this with **Sardar Patel's approach to the Somnath temple**. The temple had been broken **17 times**, and after independence, Patel decided to rebuild it. There was a mosque at the site, but Patel requested the local Muslims to agree, noting that the place had no specific Islamic significance like a visit from Prophet Muhammad. The Muslims agreed, and today there is **no conflict over Somnath**. However, **Nehru refused to allow similar temple construction in Uttar Pradesh**, which the professor argues was a political calculation to secure votes by maintaining Hindu-Muslim tensions. He laments that the ongoing disputes over **Ayodhya and Mathura** are a direct result of these early decisions.

On the subject of **traditional knowledge**, the professor shares a personal story. His father used to prepare a **medicine for cataract** from the juice of a white bush, which could cure even the highest level of cataract. However, **Ayurveda was demoted, not promoted**, and today, **curing someone at home using Ayurveda can even lead to jail**. He points out that **turmeric, tulsi, and neem are being patented by America**, even though Indian mothers have used tulsi water for sick children for generations. India had **lakhs of traditional remedies**; if these had been patented and exported, the economic gains would have been enormous. He clarifies that he is not against Western medicine or clothing—people can wear pants and suits—but **Indian products should have been marketed too**. He notes that **Modi popularized the Indian jacket**, and now 90% of people wear it, proving that such promotion is possible.

A student argues that the government's priorities were different after independence: first, they had to **feed the hungry during the Bengal famine**, build institutions like **ISRO, DRDO, and IITs**, and then focus on traditional knowledge. The professor counters by asking: **"Tell me one institute opened to promote Ayurvedic medicine."** When a student mentions **AIIMS**, he dismisses it as having only a **neglected Ayurveda department**. No dedicated government institute for Ayurveda was established. He points out that even today, **millets and Indian generic foods have become globally popular**, so why did the government not recognize this importance earlier? He argues that **70 years have passed** since independence, and the neglect continued throughout.

A student makes a thoughtful point: those in power can only act based on what they know. If **Nehru and Gandhi were educated abroad** and absorbed Western philosophies of freedom and liberty, they naturally tried to implement what they learned. They may not have known the traditional Indian knowledge systems well enough to promote them. The professor acknowledges this argument but chooses not to engage further in the debate at that moment, humorously declaring that the student has "won for now" because he needs to move forward with the syllabus. He invites the class to have a **separate, dedicated debate** on this topic another day.

Attendance

The professor takes attendance, calling out roll numbers from **1 to 141**. There is some confusion about the class strength, with the professor noting that absentees are few but the room looks less full. He makes a light-hearted remark about an absent student, asking if she does not feel like studying in the library and offering to send her there himself.

Rule of Law: Recap and Deeper Exploration

The professor returns to the topic of the **Rule of Law**, explaining why it is being studied: **one of its components, Equality before Law, is part of Article 14** of the Constitution. He recaps that **Dicey gave three components**: **Supremacy of Law, Equality before Law, and Predominance of Legal Spirit**.

Supremacy of Law means two things. First, **no one can be punished except for violation of law**. There must be a law, and only if a person violates that law can they be punished. Second, **we should not be governed by individual whims and fancies**. The professor uses a classroom example: if a student expresses an opinion he disagrees with, he cannot throw her out of class simply because he did not like what she said. That would be acting on **individual whims and fancies**. The **law gives everyone the liberty to hold independent opinions** based on their own choice, conviction, and thinking. If someone is to be punished, it must be **in accordance with the law**, not personal preference.

Equality before Law has been covered in several lectures. The principle is that **all are equal, but all cannot be equal**, which is why the **theory of classification** exists in both England and India.

Predominance of Legal Spirit is explained through an interactive example. The professor asks a student named Isha, who claims to be the most naughty in class, to think about the 100 people she has known in her life since childhood. He asks how many she would have enmity with and how many she would have neutral relations with. She estimates **80-20**, but the professor suggests it is closer to **90-95 neutral and 5-10 hostile**. With most people, **we do not fight**. Our relations remain fine. This means **we do not violate their rights, nor do they violate ours**. Even without a teacher or a State present, **peace prevails in the class because human beings are usually peaceful**. This is the essence of the **Predominance of Legal Spirit**: even before the State or formal law existed, people lived in an orderly and non-volatile manner.

The professor introduces the famous legal maxim: **"Your right ends where my nose begins."** He asks students to find out who said it, noting that it may have originated in France and was later used by **Abraham Lincoln** and others. The idea is that you can practice punching all you want, but it should not hit someone else's nose. As long as there is distance, people do not interfere. This kind of **theory governed society even when there was no sovereign, no state, no king, no Prime Minister, no Nehru, no Modi**. It is a natural, self-regulating order.

Magna Carta and the Origin of Rule of Law in England

The professor traces the **Rule of Law in England to 1215 with the Magna Carta**. He asks a student to explain it, and she responds that it was **one of the first official documents about human rights**. The professor elaborates that it was the **first written promise by a King not to do certain things**. In older times, kings would levy taxes on the public for personal whims—to fight wars for a princess, to build grand monuments for a deceased wife, or simply to display power. The **common people's blood was sucked** through arbitrary taxation. **There was no curb on the king's power**.

The **Barons of England**—not the common man, but middle-class people—confronted the king and threatened to revolt if their demands were not met. The king was compelled to accept and agreed **not to tax them without consultation**, leading to the principle of **"no taxation without consultation."** This was the first time a king acknowledged that some people had some rights. The professor clarifies two important points: **Magna Carta was not for the common man initially**, and it was **signed not once, but on several occasions**. Whenever a new king came to power, the charter was signed afresh. The first version may have had only 15 items, but later versions expanded to 39 items. Importantly, the **word "due process" was used for the first time in Magna Carta**, likely in Article 39 of a later version.

Rule of Law in India and the Subramanian Swamy Case

The professor asserts that the **Rule of Law has always existed in India in some form**. He then discusses a modern application through the case of **Dr. Subramanian Swamy vs. Dr. Manmohan Singh**. The issue was that a **government servant can be prosecuted for corruption only after obtaining permission from the government**. If a minister in Manmohan Singh's government was corrupt, permission to prosecute was needed from Manmohan Singh himself. Naturally, such permission was not granted. A case was filed, and the **Supreme Court held that not giving sanction for prosecution of a corrupt official is a violation of the Rule of Law**. The professor makes it clear that he is criticizing based on this judicial pronouncement, not personal whims. He declares that **reading this case is compulsory** and warns that anyone who does not read it will fail the mid-term, though he later admits he has never actually framed a question on this case for his students.

The World Justice Project and Measuring Rule of Law

The professor discusses the **World Justice Project (WJP)** , which has attempted to **define the Rule of Law in a new way** and annually **audits countries on their Rule of Law ranking**. He expresses some disagreement with their methodology, noting that Scandinavian countries like Norway have **smaller, more homogeneous populations and sufficient money**, so problems are fewer. India, with its immense diversity, faces unique challenges: **give reservation, General gets angry; don't give, the rest get angry. Give permission for Tazia, idol immersers get angry; give permission for idol immersion, Tazia processors get angry.** There are, as he puts it, "many arrangements for anger."

The WJP's main components are: **Accountability, Open Government, Just Law, and Accessible and Impartial Justice**. The benefits of effective Rule of Law are significant: **where Rule of Law is stronger, the economy is stronger** because hard work is rewarded and looting is less. The professor gives the example of **Bihar becoming poor because Jungle Raj replaced Rule of Law**—no one wants to set up a factory if they have to pay bribes or risk kidnapping. **More peaceful countries enjoy greater Rule of Law. People are more educated where Rule of Law exists. People live longer in countries with higher Rule of Law.** India is currently ranked around **76th**, which the professor feels is lower than deserved.

The conceptual framework includes: **Constraints on Government Powers** (limited by legislature, judiciary, independent audit, and non-governmental checks); **Absence of Corruption** (in executive, judicial, and legislative branches); **Open Government** (published laws, Right to Information, civic participation, complaint mechanisms). The professor notes that in India, **no matter how good a law Modi makes, Rahul Gandhi will never support it, and vice versa**. Party interests are prioritized over national interest, which weakens this component.

Further components read by students include: **Fundamental Rights** (equal treatment, right to life, due process, freedom of opinion, belief, privacy, assembly, and labor rights); **Order and Security** (crime control, limited civil conflict, no resort to violence for personal grievances); **Regulatory Enforcement** (effective enforcement without improper influence, no unreasonable delay, due process in administrative proceedings, no expropriation without lawful process and compensation).

The **Civil Justice** parameters include: access and affordability, freedom from discrimination, freedom from corruption, freedom from improper government influence, no unreasonable delay, effective enforcement, and accessible ADR mechanisms. The **Criminal Justice** parameters include: effective investigation, timely adjudication, effective correctional system, impartiality, freedom from corruption, freedom from improper government influence, and due process rights of the accused. The professor humorously references an incident where a former Home Minister was beaten up, suggesting that such things affect the criminal justice parameter.

The professor concludes that **Rule of Law can be applied anywhere, in practical terms**. Students can measure Rule of Law in their own university by looking at components like **whether classes start on time, whether syllabus and reading material are provided, whether teachers come on time,**

whether exams and results happen on time. One could even break it down into **Academic, Hostel Management, Mess Management, and Placement Cell** components to determine the Rule of Law parameter at NLU Nagpur.

Homework: Legitimate Expectation and American Equality Cases

The professor assigns **Legitimate Expectation** as homework. Students are to read about what it is, where it started, how it developed, when it traveled to India, and two to four cases on the topic. He also asks whether students want to read American cases on equality violations or move directly to **Article 15**. The students express interest in the American cases. He assigns two landmark cases: **Plessy v. Ferguson (1897)** and **Brown v. Board of Education (1954)** . When a student asks how he remembers exact dates, the professor responds with a quote: **"First love is never forgotten."** He says an article from BBC London reported that people who tried to find their first love after many years ended up marrying them 80% of the time. For him, the **Constitution is his first and last love**.

Personal Anecdotes and the Scholarship Issue

The professor shares stories from his career to emphasize the importance of **capability and self-confidence**. He recounts an offer to teach for CLAT coaching in 2012. A gentleman approached him looking for a teacher, and he initially refused. When the man persisted, the professor demanded **3000 rupees per lecture** (equivalent to 15000 today). The man asked him to first teach a demo class because the students were "very naughty" and had chased away three teachers. The professor replied: **"Throw your approval in the dustbin. I don't have time to give a test. If you bring lousy teachers, kids will do this only."** He refused to negotiate and insisted on payment for all 30 classes upfront, even joking that the director should not instigate the kids to chase him away after 28 classes to avoid paying. His confidence came from knowing his subject thoroughly. He eventually taught there successfully.

He shares that **Nidhi Mugreja**, a good teacher, currently earns around **6-7 lakh rupees per month** teaching at Rahul IAS, possibly even 10 lakhs. The lesson is: **"In India, there is no lack of employment; there is a lack of capable people."** He emphasizes that he belongs to the **General category with no reservation** and has changed many government jobs, always thriving because of his competence. He chose to stay in Nagpur because Delhi's pollution gave him respiratory problems and **black spots on his heart**—doctors told him it looked like he smoked 20 cigarettes a day, though he has never even seen a cigarette up close. Nagpur, especially the Mihan area, offers a peaceful life with morning and evening walks.

Finally, the professor discusses the recent **scholarship issue** at the university. The scholarship is called **Merit-cum-Means**, which the **Vice Chancellor had been interpreting for seven years as "Merit separate, Means separate,"** giving scholarships under two different heads. When the professor became Chairman of the committee, he argued that **"Merit-cum-Means" means "Merit in Means,"** just as a **"Drawing-cum-Dining room" does not mean the dining room and drawing room are separate**. He scolded the committee members and, after a world-class research effort, took the matter to the Executive Council, where a judge ruled in his favor. Now, only students whose **family income is up to 8 lakh rupees** (the government's means criteria) are eligible, and within that group, the toppers receive the scholarship. Those with family income of 1 crore rupees are not eligible at all. He notes that students are still sending letters asking about the separate merit scholarship, but he tells them the VC knows, not him. He concludes that this is **Rule of Law** in action—and that is why people get angry with him. But if one keeps reading and building capability, one will always find work elsewhere.